

Line 3

Case Name: *TD Bank USA, N.A., as Successor in Interest to Target National Bank*
v.
Serena Salazar Marquez, et al.

Case No.: 25CV459301

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

Plaintiff TD Bank USA, N.A., as Successor in Interest to Target National Bank (“Plaintiff”) moves that the truth of all matters specified in the Requests for Admissions, Set One, be deemed admitted by Defendant Serena Salazar Marquez (“Defendant”) under Code of Civil Procedure Sections 2023.010 *et seq.* and 2031.010 *et seq.* Notice of Motion (the “Motion”) at 1:21-27 (filed: Jan. 7, 2026)

The Motion came on for hearing on June 12, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admission, Set One, on Defendant on May 29, 2025. Declaration of attorney Laura M. D’Anna In Support of Motion (“D’Anna Decl.”) at ¶ 2.

Defendant never responded to the Requests for Admission, Set One, D’Anna Decl. at ¶ 3, in spite of Defendant’s obligation to respond to them under Code of Civil Procedure section 2033.240.

Under Code of Civil Procedure section 2033.280, because Defendant failed to respond to the Requests for Admission, Set One, Plaintiff moves for an Order deeming admitted by Defendant the truth of each matter in the Requests for Admission, Set One. C.C.P. 2033.280(b).

The Motion is well supported by the law, well supported by the facts set forth in the D’Anna Declaration, and reasonable in all respects.

Defendant does not argue otherwise. Indeed, Defendant has not opposed this Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED** that the truth of all specified facts in the Requests for Admission,

Set One, served on Defendant Serena Salazar Marquez on May 29, 2025, is deemed admitted by Defendant Serena Salazar Marquez.

SO ORDERED.

Date: June 12, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Steven Rocheville v. Neely Segerstrom*

Case No.: 25CV467856

See ORDER above. [As Plaintiff under Code of Civil Procedure Section 472(a) timely filed a First Amended Complaint on June 1, 2026, Defendant's Demurrer to the original Complaint is now moot and **OFF CALENDAR**. Defendant is free to answer, demur, or otherwise respond to the First Amended Complaint within the time permitted by the Code of Civil Procedure. *See* C.C.P. § 472 (a) ("time for responding to an amended pleading shall be computed from the date of service of the amended pleading").]